

City of Cheyenne
CITY CONTRACT NO. _____

202~~6~~5 - 202~~7~~6

COLLECTIVE LABOR AGREEMENT

BETWEEN

CITY OF CHEYENNE, WYOMING

2101 O'Neil Avenue
Cheyenne, Wyoming 82001

AND

**CHEYENNE FIREFIGHTERS
LOCAL UNION NO. 279
INTERNATIONAL ASSOCIATION OF FIREFIGHTERS**

P.O. Box 674
Cheyenne, Wyoming 82003-0674



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SECTION 1. PARTIES

The parties to this Agreement are the City of Cheyenne, Wyoming, a municipal corporation, hereinafter referred to as the “City,” and the Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters, hereinafter referred to as the “Union.”

SECTION 2. DEFINITIONS

Acceptable Fire-Training Academy:

A school whose program certification requirements meet the professional qualifications and the job performance requirements (JPR's) for Firefighter I, Firefighter II, and Hazardous Materials Operations as provided by the National Fire Protection Association (NFPA).

Bargaining Agent:

Local Union No. 279 is the agent representing the firefighters for the City of Cheyenne, Wyoming, and shall be recognized as the sole and exclusive bargaining agent and shall have the scope of authority to bargain for rates of pay, hours of work, and other working conditions.

Base Pay:

The agreed rate of pay for a firefighter based on their rank and step as specified in Section 21 excluding overtime pay, longevity pay, holiday pay, education pay, and specialty pay.

Cadre/Training Instructor:

The Cadre/Training Instructor position may be utilized to fulfill the needs of the department during recruit academies or to meet the training needs of the Department outside of academy opportunities. Assignments made to this position shall not exceed twelve months in duration. If a Member is retained for time periods outside of an active academy, the Member shall be utilized to meet the training demands of Cheyenne Fire Rescue. An assignment made to fill this position shall not violate Section 15, unless otherwise agreed upon between the Fire Chief and the Union.

Civil Service Commission:

The City of Cheyenne Fire Department Civil Service Commission.

Command Staff:

The Fire Chief, Deputy Fire Chiefs.

Command Officers:

Battalion Chiefs

Cross Staffing:

The functioning of a comprised company to split its personnel to operate specialized apparatus at the same scene. Specialized apparatus shall not be utilized at companies where the call concurrency rate exceeds fifteen percent.

Company Officers:

Captains, Lieutenants.

Day Personnel:

A Member who works an eight or ten-hour tour of duty.

Days:

For any period of time specified in this Agreement, days shall be computed in accordance with the Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Department:

The Cheyenne Fire Rescue Department.

Deputy Fire Chief:

Assistant to the Fire Chief, acts as Fire Chief in their absence and can satisfy the job qualifications outlined in the current Civil Service Rules and Regulations.

Dual Assignment:

The functioning of a comprised company to split its personnel to operate different apparatus, separated and on different scenes.

Eligibility List:

A list established by the City of Cheyenne Fire Department Civil Service Commission pursuant to its Rules and Regulations.

E.M.S.:

Shall mean Emergency Medical Services.

Engine Company:

A pumping apparatus of at least 750gpm capacity, consisting of a minimum three-person crew that is comprised of at least a lieutenant, engineer, and firefighter, of which at least one is a paramedic.

E.O.D.:

Shall mean earned off-duty time or compensatory time off.

Extraordinary Circumstances:

An event or condition which could not reasonably be anticipated or expected to occur and is beyond the usual, customary, or regular duties of firefighters.

Fire Chief:

The Chief of the Cheyenne Fire Rescue Department and can satisfy the job qualifications outlined in the current Civil Service Rules and Regulations.

Grievance:

The procedure for the resolution of disputes arising under this Agreement as specified in Section 8.

Immediate Family:

Spouse	Grandmother
Daughter	Grandfather
Son	Grandchildren
Mother	Mother-in-Law
Father	Father-in-Law
Sister	Sister-in-Law

Brother
Step-Mother
Step-Father
Step-Children

Brother-in-Law
Daughter-in-Law
Son-in-Law

Incident Commander:

The highest-ranking Officer who initially responds to any call for service or who has accepted transfer of command.

Ladder Company:

An aerial apparatus of at least 75' with pumping capabilities, consisting of a minimum four-person crew that is comprised of at least a lieutenant, two engineers, and a firefighter, of which at least one is a paramedic. Notwithstanding these crew staffing requirements, and for the purpose of staffing flexibility and/or providing additional staffing resources, a "Ladder Company" may consist of a crew that is comprised of one engineer assigned with two firefighters, except this staffing level may not eliminate the engineer rank total of seven per shift.

Members:

All regularly sworn employees of the Cheyenne Fire Rescue Department, as covered by the Collective Labor Agreement (excluding the Fire Chief and Deputy Fire Chief^s).

Officer in Charge:

Any Officer in a Member's chain of command.

On-Call:

Members may be required to be available for callback for the performance of duties as determined by the Fire Chief and/or Deputy Fire Chief, and as compensated in accordance with Section 21, Classification of Employment and Basic Wages.

Platoon Personnel:

A Member who works a twenty-four-hour tour of duty.

Rank:

Any of the ranks specified in the Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Rescue Company:

An initial attack pumping apparatus of at least 250gpm capacity, consisting of a minimum three-person crew that is comprised of a lieutenant, an engineer, and a firefighter, of which at least one is a paramedic.

Rotational Positions:

Personnel promoted to rotational positions shall maintain that position for a maximum of three (3) years or at the fire chief's discretion. These positions include:

- Battalion Chief assigned to Support
- Captain assigned to Support
- Training Coordinator
- EMS Coordinator Position

Rules and Regulations:

The Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Seniority:

The time of consecutive service a Member has accumulated from the date of the Member's employment and shall not be interpreted as time in grade or rank.

Set:

Two consecutive 24-hour shifts, served on the Member's assigned shift.

“Shall” and “May”:

“Shall” is mandatory; “May” is permissive.

Shift:

The number of hours worked in a tour of duty by:

- A. Day Personnel - Personnel assigned to work a forty-hour week (Monday through Friday).
- B. Platoon Personnel - Personnel assigned to work twenty-four-hour shifts.

Shift Trainers

Personnel who have been assigned to assist Fire Training or EMS.

Specialty Apparatus:

Any fire department apparatus or vehicle that is intended for specific use by duty personnel for their response. These are not defined Company apparatus and examples include, but not limited to brush/wildland apparatus, boats, UTV's, hazardous materials response vehicles, and high/low angle rescue response vehicles.

Special Operations Team:

Groups of personnel established by the Fire Chief to fulfill operational needs beyond routine fire suppression and Emergency Medical Services based on identified risks in the community.

Members are limited to a maximum of two Special Operations Team compensations. Teams include but are not limited to:

- Community Emergency Medical Services (Up to 6 Members)
- Hazardous Materials (Up to 24 Members)
- Tactical Emergency Medical Services (Up to 6 Members)

- Technical Rescue (Up to 15 Members)
- Wildland Firefighting (Up to 12 Members)

Special Operations Team Coordinator:

An individual assigned by the fire chief or designee responsible for the management of a designated special operations team. Up to one coordinator may be assigned per team.

Special Operations Team Lead:

Individual assigned by the fire chief or designee to assist with the management of a designated special operations team. ~~Up to one team lead per shift may be assigned.~~

Special Operations Team Member:

Individual members selected by the fire chief or designee for a designated special operations team.

Squad/Support Company:

A rescue apparatus capable of transporting patients, consisting of a minimum two-person crew that is comprised at a minimum of a firefighter EMT-P and a firefighter EMT-B. At least one assigned member shall be a Firefighter Step 2. Probationary firefighters shall not be included as members of the crew. Squads shall not be dispatched to structure fire responses as a single resource. They may be attached/assigned to a Ladder and/or Engine Company and will operate under that company officer on the fire ground.

Temporary Assignment:

An assignment to a position and rank for a period of no more than twelve months to meet the needs of the Department. The Department shall not assign more than one Member at any given time.

Vacancy:

A vacancy is any open position resulting from resignation, termination, retirement, death, promotion, or voluntary or involuntary demotion.

SECTION 3. EXCLUSIVE BARGAINING AGENT

The paid Members of the Cheyenne Fire Rescue Department, the regularly constituted Fire Department of the City of Cheyenne, Wyoming, by a majority vote, have selected the I.A.F.F. Local Union No. 279 as the sole and exclusive bargaining agent for all of the Members of the Department, except the Fire Chief and the Deputy Fire Chiefs.

The Union and the City's obligation to negotiate is subject to Wyo. Stat. §§ 27-10-101 through 27-10-109.

The City shall not enter into any other agreement with Members serving as firefighters, individually or collectively, or with any other organization, which in any way conflicts with the provisions of this Collective Labor Agreement.

SECTION 4. TERM OF AGREEMENT

This Agreement shall become effective 12:00 a.m., July 1, 202~~6~~⁵, and remain in effect until 11:59 p.m., June 30, 202~~7~~⁶.

SECTION 5. SEPARABILITY

If any clause, sentence, paragraph, or part of this Agreement, or the application thereof to any person or circumstance, shall for any reason be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder of the Agreement.

SECTION 6. EMBODIMENT OF AGREEMENT

This Collective Labor Agreement constitutes the sole and complete agreement between the parties and embodies all the terms and conditions governing the wages, rates of pay, and working conditions of the Members represented by the Union. All costs associated with the arbitration shall be shared equally by the City and the Union. The parties acknowledge they have had the opportunity to present and discuss any subject germane to collective bargaining. Any prior commitment or agreement between the City and the Union or any individual Member covered by this Agreement that has been negotiated by the Union is hereby superseded.

SECTION 7. RE-NEGOTIATIONS

At any time prior to the expiration date of this Agreement, any provision herein may be re-negotiated by mutual agreement of the City and the Union. No part of this Agreement shall be opened until mutual agreement is reduced in writing and signed by both parties, consisting of the bargaining committee for the Union and the Governing Body of the City. Only the issue(s) in question shall be re-negotiated, and not the entire Agreement.

SECTION 8. GRIEVANCE PROCEDURES

A grievance is defined as a dispute or difference of opinion between the City and a Member, Members, or the Union over the meaning, interpretation, application, or the inequitable application of an expressed provision of the Agreement. Any Member may file a grievance under this Agreement protesting the exercise of Management Rights, but to prevail, the Member must establish a violation by the City of the specific terms of this Agreement. Any grievance filed against the City shall be in writing and if a Member's grievance, it shall contain the name and position of the affected Member(s). The grievance shall contain a clear and concise statement of the grievance, the issue or issues involved, the relief sought, the date the incident or violation took place, and the specific section or sections alleged to have been violated.

For a grievance to be considered timely, the Union's Grievance Committee must submit it in writing within ten business days of the date the grievant knew of the event giving rise to the dispute, following the steps below:

Step 1

The Union's Grievance Committee may submit the grievance in writing to the Deputy Fire Chief who will then schedule a meeting with the grievant and two members of the Union's Grievance Committee within ten business days to discuss the grievance and attempt to resolve the grievance. A written decision from the Deputy Fire Chief shall be delivered to the grievant, Union, and Fire Chief within five business days of the meeting. If the decision fails to satisfy the grievant and/or Union, either may initiate Step 2 of the grievance process.

Step 2

A grievant and/or Union's Grievance Committee who does not agree with the Step 1

response and still feels that they have been grieved, may initiate Step 2 and forward the original grievance and written responses from Step 1 to the Fire Chief within ten business days of receipt of the written decision from Step 1.

Upon receipt, the Fire Chief shall have five business days to schedule and meet with grievant and/or Union's Grievance Committee to hear the grievance and associated facts to seek a resolution. If a resolution is reached, the decision shall be reduced to writing and signed by all parties within ten business days. If a resolution cannot be reached, the Fire Chief shall deliver a decision to the parties involved and Mayor within ten business days. If the decision fails to satisfy the grievant and/or Union's Grievance Committee, either may initiate Step 3 of the process.

It is understood that nothing shall preclude the Grievance Committee from electing to skip Step 1 and begin with presenting a grievance to the Fire Chief if it is deemed that such action is warranted by the nature or circumstances of the grievance.

Step 3

A grievant and/or Union's Grievance Committee who does not agree to the Step 2 response and still feels they have been grieved, may initiate Step 3 and forward all original grievance and responses to the Mayor within ten business days of receipt of the Fire Chief's decision. The Mayor and Fire Chief shall meet with all parties involved within ten business days of receipt of the Step 3 notification.

In attendance at the meeting shall be the Mayor or their designee, the aggrieved party, the Union's Grievance Committee, and at the Union's option, its legal counsel. If the grievance is settled as a result of such meeting, the settlement shall be reduced to writing and signed by the parties within five days following the meeting. If no settlement is reached, the Mayor or their

designee shall give a written answer to the grievance within five business days following the meeting. The grievance may then be submitted to arbitration by the Union.

Arbitration

Within five business days from the receipt of the Mayor or their designee's written answer referred to above, the City and the Union shall request in writing that the American Arbitration Association shall submit a list of five arbitrators. Within five business days after receipt of said list, one impartial arbitrator shall be selected. A coin flip shall determine which side will be first in striking a name from the list. The name last remaining shall be the appointed impartial arbitrator.

Arbitration shall proceed pursuant to the provisions of the Uniform Arbitration Act. (Wyo. Stat. §§ 1-36-101 through 1-36-119). The selected arbitrator shall have no right to amend, modify, alter, add to, or subtract from the provisions of the Agreement. The arbitrator shall only consider and make a decision with respect to the specific issue or issues submitted and shall have no authority to make a decision on any other issue not so submitted to the arbitrator. In the event the arbitrator finds a violation of the terms of the Agreement, the arbitrator shall fashion an appropriate remedy. Any dispute, claim, or grievance arising from or relating to interpretation or application of this Agreement shall be submitted to arbitration administered by the American Arbitration Association under its Labor Arbitration Rules, unless the parties otherwise have agreed in this Section. The parties further agree to accept the arbitrator's award as final and binding on them, subject to the right of either party to seek judicial review pursuant to Wyo. Stat. §§ 1-36-101, *et seq.* The parties shall each pay half the costs and expenses of the impartial arbitrator. Should the same issue be submitted to arbitration two or more times during the term of this Agreement and

the same party loses two or more times on that issue, the losing party shall pay all costs and expenses of the second or any subsequent impartial arbitration.

SECTION 9. NON-DISCRIMINATION

Neither the City nor the Union shall discriminate against a Member of the Department by any means whatsoever because of race, sex, sexual orientation, gender identity, creed, color, national origin, or Union affiliation with I.A.F.F. Local Union No. 279. The City and the Union shall comply with the requirements of Title VII of the Civil Rights Act of 1964, as amended, the Fair Employment Practices Act of 1965, as amended (Wyo. Stat. §§ 27-9-101, *et seq.*), and other applicable state and federal laws.

SECTION 10. ANNEXATIONS

The City and the Union agree that should the City annex any new areas the Department will provide first response to all calls in all annexed areas with the exception of the F. E. Warren Air Force Base.

SECTION 11. VOLUNTARY DEMOTION

Any Member who voluntarily requests a demotion from the Member's current rank shall be demoted to the rank held immediately prior to the Member's promotion. The Member shall make the request in writing at least thirty days prior to the effective date of the requested demotion. The request shall be subject to approval by the Fire Chief. The Fire Chief may not, prior to the expiration of the thirty-day period, appoint another Member to the position from which the Member wishes to be demoted. Upon the effective date, the Member shall return to their previous rank and grade.

SECTION 12. UNION REPRESENTATION

In the event any Member of the Department appears before the Deputy Fire Chief, Fire Chief, the Mayor or their designee, for work-related disciplinary action, that Member shall have the option of having one elected Union representative present. The person or persons being disciplined shall only be called in while on duty. The elected Union representative shall be granted time off without loss of wages.

For the purpose of this Section, the term “work-related disciplinary action” includes, but is not limited to, verbal or written reprimands, demotion, suspension, or termination actions that become part of the Member’s personnel file.

SECTION 13. MANAGEMENT RIGHTS

Except as otherwise provided in this Agreement, the City shall have the right to direct and manage the operations of the Department and its employees, and to maintain the efficiency of the Department including:

1. The determination of Cheyenne Fire Rescue Department policy, including the right to manage the affairs of the Department.
2. The right to establish and modify the amount of apparatus in the main or reserve fleet.
3. The right to direct the members of the Department, including the right to hire, promote, discipline, or transfer Members to another shift.
4. The collaboration for the safety, health, and property-protection measures provided by the Department for the citizens of Cheyenne.
5. The selection and promotion of employees established by the Civil Service Commission in its rules and regulations.
6. The determination of policy training of employees.
7. The establishment, modification, and enforcement of Department rules, regulations, and orders.
8. The determination of the amount of supervision necessary.
9. The transfer of employees from one station to the other.
10. The establishment and determination of specialized emergency response teams to include roles, responsibilities, and training requirements.
11. The right to establish job descriptions for each duty position within the department

as identified in Section 21, Classification of Employment and Basic Wages.

12. The right to staff apparatus and equipment based on community risk analysis needs and as identified in Section 2, Definitions and Section 15, Department Staffing.

13. The right to manage organizational risk including, but not limited to financial crisis, natural disasters, cyber incidents, global pandemics, and social emergencies with specific written policy and departmental continuity of operations.

14. The right to payout any member for any unused vacation and EOD (over 240 hours) at the time of promotion, step-increase, separation, and/or transfer.

It is agreed that no conduct or action of the City or Union hereunder shall breach the provisions of the Agreement, the Civil Service Rules and Regulations in effect on ~~July 1~~October 10, 2025~~3~~, and the laws of the State of Wyoming governing Firefighters, and the discretionary power invested in the City and the Fire Chief shall not be exercised in an arbitrary or capricious manner.

SECTION 14. STRIKES

During the term of this Agreement, there shall be no strike, slowdown, suspension, or work stoppage by the Members of the Department, nor shall there be any lock-out or work interference by the City.

SECTION 15. DEPARTMENT STAFFING

The Department shall maintain a minimum staffing level of one hundred firefighters, including the Fire Chief and Deputy Fire Chiefs, with a minimum of twenty-nine firefighters assigned to each shift. When Department staffing falls below the minimum level of firefighters, it shall be brought back to the minimum level as follows:

The Fire Chief shall utilize the current Civil Service Commission eligibility list to begin the replacement process for the available openings. The Fire Chief may elect to:

1. Hire person(s) who have two or more years of documented paid professional firefighting experience, with initial training equal to or higher than an acceptable fire training academy. Additionally, the potential new hire must submit all continuing education completed by them as documented by their current training division for review. If the potential new hire meets or exceeds the base minimum training as compared to Department standards, the Chief may elect to hire the person(s) and have them begin an orientation program and upon completion report to shift work; or
2. Hire personnel and send them through an acceptable fire training academy or equivalent program.

Should a vacancy be filled with a lateral hire, this member shall enter the rank of Firefighter. The lateral member's consecutive years of service from their previous agency will determine their step grade but shall not exceed Firefighter Step-1. For example, if a lateral hire has two consecutive years of service with another fire department and conforms to Section 15 subsection 1 of this CLA, they will be paid at the Firefighter Step-2 rate. The credit for time does not apply to, or affect, an individual's seniority date or service date,

and is therefore not recognized for benefits associated with those dates (i.e., promotional time requirements, station picks, vacation selection, seniority points for examinations, reduction in force, etc.). This member's first year of employment shall be of a probationary status. The Fire Chief shall have discretion to adjust initial pay step with a rate maximum of Firefighter Step-1.

To accommodate fire-training academy schedules, the Department may delay hiring new Members until seven days prior to the start of spring and fall academies, while still recognizing the importance of minimum staffing levels.

A. If a Member separates from service within forty-five days or less of the start of a fire training academy program, the City is not required to hire a replacement to attend the immediate academy but shall have hired the replacement(s) at least seven days prior to the subsequent academy.

B. The staffing of the Suppression, Community Risk Reduction (CRR), Support and Administration Divisions, excluding the Fire Chief and Deputy Fire Chief, shall be at the minimum level of ninety-eight at least seven days prior to the start of the spring and fall academies, and shall not fall below the minimum staffing level until another Member separates from service.

C. Each new firefighter shall satisfactorily complete an acceptable fire academy program or orientation held by the Department prior to entering the ranks of the Department. Upon completion of the fire academy, the new Member shall be reviewed on a regular basis as set forth in a defined probationary period, approved by the Department. During the probationary period, a Member may be terminated at any time without cause.

When shift staffing is reduced from vacancies (retirement, separation, or transfer to days),

the use of E.O.D. time may be restricted to ensure proper shift minimum levels.

D. The use of E.O.D. compensatory time is restricted for Platoon Personnel when a Member is transferred to a forty-hour week duty assignment or reassigned by the Fire Chief.

Company Strength

For the safety of the Members and the citizens of Cheyenne, and the effective utilization of fire equipment, the Department shall employ engine companies, a ladder company, [a support/squad](#) and a Battalion Chief, all without dual assignment and as defined for suppression operations, for a minimum staffing of ~~twenty~~[twenty-two](#)¹ firefighters. The Fire Chief may employ additional resources such as an engine, ladder, squad, rescue, specialty apparatus, as the Fire Chief determines as necessary.

All firefighting equipment dispatched to all structural fires shall consist of a minimum of sixteen members without an aerial ladder truck and seventeen members with an aerial ladder truck. Members on the first alarm, and any alarm thereafter shall be answered at the discretion of the Incident Commander. The Incident Commander shall have full authority to request additional resources, make appropriate assignments and comply with the 2 in-2 out standard.

In a Mutual Aid request for assistance, the City need only respond with the requested equipment. The on-the-scene Officer in Charge of such equipment may, for safety reasons, request additional equipment through the Authority Having Jurisdiction Incident Commander before involving the crew at the scene.

¹ [The minimum staffing was raised to twenty-two effective January 1, 2024. See the attached email from then Deputy Chief Dykshorn dated December 20, 2023](#)

SECTION 16. RESERVE MANPOWER

In the event of an emergency that in the judgment of the Incident Commander necessitates additional manpower, the Incident Commander may call in off-duty personnel of the Department. The Incident Commander may request mutual aid assistance when justified by the circumstances.

SECTION 17. HOURS OF WORK

The average work week for Platoon Personnel shall be fifty-six hours computed on a twenty-four-day basis. The three-shift system shall be maintained with twenty-four-hour tours of duty, and the existing schedule shall be continued, which will include scheduled work time from the hours of 0800 to 1700 with one hour off for lunch and one hour for physical fitness training.

Beginning January 7, 2023, the employer shall begin the work shifts per work period as follows: the stated work period for purposes of complying with the Fair Labor Standards Act shall be twenty-four days. Each Member shall be assigned to work shifts that total 192 hours of work per period. The assigned schedule shall be a 48/96 shift schedule, three platoon system in which employees work two consecutive twenty-four hour shifts for a total of forty-eight hours and have ninety-six consecutive hours off. The maximum number of consecutive hours worked by members shall be ninety-six hours.

Day Personnel will be primarily scheduled to work four 10-hour days (40-hour work week) as defined in the definitions. Shifts may begin at 0700 hours and may end at 1800 hours. This time may be adjusted to meet the needs of the Fire Department or the Member with the approval of the Fire Chief. The schedule may have one weekday, and shall have Saturday, Sunday, and holidays off. If a holiday falls on a Member's regularly scheduled day off, the Member shall receive the day before the holiday or the next regularly scheduled workday off, as determined by the Fire Chief.

SECTION 18. TRADING SHIFTS

Members shall be permitted to trade shifts or parts of a shift if equal duties can be assumed with permission of the Battalion Chief or designee, providing there is no additional cost to the City. No Member shall be permitted to compensate another Member for a shift worked, either in money, or in any other form of remuneration.

SECTION 19. INCLEMENT WEATHER CONDITIONS

It is the responsibility of each Member of the Department to make an honest effort to report to work as scheduled. During periods of severe inclement weather, Members are classified as essential personnel.

If a Member cannot report for duty as scheduled without an unreasonable risk to their safety, the Member shall immediately notify ~~an Officer in Charge at Headquarters~~ the on-duty Battalion Chief, Captain, or appropriate Lieutenant by the hours specified in the rules and regulations to report the Member's status. The following will apply to:

Platoon Personnel:

The Officer in Charge shall notify the Member who has to be relieved of duty and place that Member on holdover until properly relieved.

The affected Member shall be:

1. Granted two hours of administrative leave without penalty to report to duty.

If a Member cannot arrive safely in the two hours, the Member may request from the Fire Chief or Deputy Fire Chief an additional two hours of administrative leave without penalty (maximum of four hours administrative leave).

2. If the Member is still unable to safely report to duty by noon, they may obtain an emergency time swap for the period needed to report to duty or utilize accrued vacation or E.O.D. time in hour increments until they are able to report to duty.

Day Personnel:

Members who work a forty-hour work week shall be required to observe the following:

If the City remains open and a Day Personnel Member cannot safely report for duty,

the affected Member will contact their appropriate supervisor to report the Member's status. The Member affected by inclement weather will be allowed to flex the needed time to safely report to duty or utilize accrued vacation or E.O.D. time on an hour for hour basis for time absent until they are able to safely report to duty.

If City offices are closed, or a delayed start is declared by the Mayor of the City of Cheyenne, Day Personnel will be granted time off without penalty.

In the event of a delayed start, Day Personnel will be required to report for duty at the designated time or will be allowed to flex the needed time to safely report to duty or utilize accrued vacation or E.O.D. time on an hour for hour basis for time absent until they are able to safely report to duty.

The Department will not charge accrued vacation or E.O.D. compensatory time for time missed in the event a Day Personnel Member is directed by the Fire Chief or their designee to leave work early due to inclement weather.

SECTION 20. HOLIDAYS

The following are the recognized paid holidays for this contract period for platoon personnel only. Day personnel shall be off on days that are congruent with the City of Cheyenne holiday schedule, with full pay.

New Year's Day

Martin Luther King, Jr., Day

President's Day

Memorial Day

Juneteenth National Independence Day

July 4th

One-half day for Cheyenne Day

Labor Day

Columbus Day

Veteran's Day

Thanksgiving Day

Christmas Day

Department Members shall be granted a choice of either E.O.D. compensatory time off for the actual number of hours worked during the holiday or paid compensatory wages at their regular base rate for that shift on the holiday hours worked and shall not be deprived of and shall receive in addition to their regular base pay for the day.

The Department shall refrain from scheduling activities on the holidays designated herein.

SECTION 21. CLASSIFICATION OF EMPLOYMENT AND BASIC WAGES

Pension Contribution

Effective July 1, 2009, the City shall pay one and a half percent (1.5%) of each Member's contribution to the Member's Pension Fund Plan B Retirement Account, as allowed by Wyo. Stat. § 15-5-420.

Wages

Members represented in this Collective Labor Agreement shall receive wage increases in a percentage format and not in a dollar format. The percentage format will maintain the step and rank separation that is in place. Beginning July 1, 2026, all classifications shall receive a market rate increase of 3% in base wages and an additional 3.5% increase to Capt. and 4.75% BC to address compression. Probationary step to 5% less than Firefighter step 4, a targeted increase of 10.34% to Firefighter Probationary step. Increase medical, longevity, and specialty pay 3%. All tables and dollar amounts are reflected in the designated sections. In the event that City of Cheyenne employees receive a cost-of-living adjustment (COLA) during this contract period, Members shall receive an equivalent increase at the same time, expiring on June 30th, 2027~~6~~, at 11:59 P.M. Members in the various classifications shall be compensated the following hourly wages: July 1, 2026~~7/1/2026~~5

Sworn		Hourly Base Wage	
Rank	Step	Shift 56-hour	Shift 40-hour
Probationary Firefighter	Prob	\$20.38	\$28.60
Firefighter	Step 4	\$22.98	\$32.26
Firefighter	Step 3	\$23.79	\$33.35
Firefighter	Step 2	\$24.62	\$34.52
Firefighter	Step 1	\$25.48	\$35.73
Engineer	Step 2	\$27.01	\$37.87
Engineer	Step 1	\$27.96	\$39.20

Lieutenant, Coordinator, Assistant Fire Marshal	Step 2	\$30.19	\$42.39
Lieutenant, Coordinator, Assistant Fire Marshal	Step 1	\$31.25	\$43.87
Captain, Deputy Fire Marshal	Step 2	\$32.42	\$45.51
Captain, Deputy Fire Marshal	Step 1	\$33.41	\$46.90
Battalion Chief, Fire Marshal	Step 2	\$34.37	\$48.26
Battalion Chief, Fire Marshal	Step 1	\$35.58	\$49.94
Deputy Fire Chief	NA	City Scale	City Scale
Fire Chief	NA	City Scale	City Scale

<u>Sworn</u>		<u>Hourly Base Wage</u>	
<u>Rank</u>	<u>Step</u>	<u>Shift 56-hour</u>	<u>Shift 40-hour</u>
<u>Probationary Firefighter</u>	<u>Prob</u>	<u>\$22.87</u>	<u>\$32.11</u>
<u>Firefighter</u>	<u>Step 4</u>	<u>\$23.67</u>	<u>\$33.23</u>
<u>Firefighter</u>	<u>Step 3</u>	<u>\$24.50</u>	<u>\$34.35</u>
<u>Firefighter</u>	<u>Step 2</u>	<u>\$25.36</u>	<u>\$35.56</u>
<u>Firefighter</u>	<u>Step 1</u>	<u>\$26.24</u>	<u>\$36.80</u>
<u>Engineer</u>	<u>Step 2</u>	<u>\$27.82</u>	<u>\$39.01</u>
<u>Engineer</u>	<u>Step 1</u>	<u>\$28.80</u>	<u>\$40.38</u>
<u>Lieutenant, Coordinator, Assistant Fire Marshal</u>	<u>Step 2</u>	<u>\$31.10</u>	<u>\$43.66</u>
<u>Lieutenant, Coordinator, Assistant Fire Marshal</u>	<u>Step 1</u>	<u>\$32.19</u>	<u>\$45.19</u>
<u>Captain, Deputy Fire Marshal</u>	<u>Step 2</u>	<u>\$33.39</u>	<u>\$46.88</u>
<u>Captain, Deputy Fire Marshal</u>	<u>Step 1</u>	<u>\$34.41</u>	<u>\$48.31</u>
<u>Battalion Chief, Fire Marshal</u>	<u>Step 2</u>	<u>\$35.40</u>	<u>\$49.71</u>
<u>Battalion Chief, Fire Marshal</u>	<u>Step 1</u>	<u>\$36.65</u>	<u>\$51.44</u>
<u>Deputy Fire Chief</u>	<u>NA</u>	<u>City Scale</u>	<u>City Scale</u>
<u>Fire Chief</u>	<u>NA</u>	<u>City Scale</u>	<u>City Scale</u>

<u>Sworn Rank and Step</u>		<u>Hourly Base Wage</u>	
<u>Rank</u>	<u>Step</u>	<u>Shift 56-hour</u>	<u>Shift 40-hour</u>
<u>Probationary Firefighter</u>	<u>Prob</u>	<u>\$23.16</u>	<u>\$32.51</u>
<u>Firefighter</u>	<u>Step 4</u>	<u>\$24.38</u>	<u>\$34.23</u>
<u>Firefighter</u>	<u>Step 3</u>	<u>\$25.24</u>	<u>\$35.38</u>
<u>Firefighter</u>	<u>Step 2</u>	<u>\$26.12</u>	<u>\$36.63</u>
<u>Firefighter</u>	<u>Step 1</u>	<u>\$27.03</u>	<u>\$37.90</u>

Engineer	Step 2	\$28.65	\$40.18
Engineer	Step 1	\$29.66	\$41.59
Lieutenant, Coordinator, Assistant Fire Marshal	Step 2	\$32.03	\$44.97
Lieutenant, Coordinator, Assistant Fire Marshal	Step 1	\$33.16	\$46.55
Captain, Deputy Fire Marshal	Step 2	\$35.56	\$49.93
Captain, Deputy Fire Marshal	Step 1	\$36.65	\$51.45
Battalion Chief, Fire Marshal	Step 2	\$38.14	\$53.56
Battalion Chief, Fire Marshal	Step 1	\$39.49	\$55.43
Deputy Fire Chief	N/A	City Scale	City Scale
Fire Chief	N/A	City Scale	City Scale

The following ranks and steps shall be established in accordance with Chapter II, Classification of Employment, and Chapter 5 Promotions and Eligibility Lists, of the current Civil Service Rules and Regulations.

Firefighter (Probation, Step-4, Step-3, Step-2, Step-1) Minimum 44, Up to 1 may be used for Deputy Fire Marshal and 1 for Captain of Support position.

Engineer (Step-2, Step-1) Minimum 21

Lieutenant (Step-2, Step-1) Minimum 21, Up to 3 may be used for Captain positions

Captain (Step-2, Step-1) Up to 4

Battalion Chief (Step-2, Step-1) Minimum 5, Up to one may be used for Deputy Chief

Assistant Fire Marshal (Step-2, Step-1) Minimum 4

Deputy Fire Marshal (Step-2, Step-1) Up to 1

Fire Marshal (Step-2, Step 1) Minimum 1

Coordinators (Step-2, Step 1) Minimum 2

Deputy Fire Chief (Up to 2, Minimum 1)

Fire Chief (Minimum 1)

Each step is for a duration of one year.

Step requirements:

Step 2 – Passed the civil service exam and promoted to the tested rank. Paid to members when they act in daytime role (Assistant/Deputy Fire Marshal, Coordinator, Captain, Battalion Chief).

Step 1 – Serve as a Step-2 for one-year. This rate shall be paid to those members when they act in an overtime situation.

On-Call Pay

All Members of the Department shall receive, when it is determined by the Fire Chief and/or Deputy Fire Chief that personnel need to be available for call back, the following hourly rate applies:

All Personnel	\$3.33
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Education Pay

All Members of the Department shall receive, for any degree in fire science, fire service administration, emergency medical services, or master's degree from an accredited institute, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.3 2 8
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Day Personnel	\$0.5 6 4
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EMS Pay

Emergency Medical Technician

All Members, except for Daytime Battalion Chief's and above of the Department shall receive, when they are certified as Emergency Medical Technicians/Basic by the State of Wyoming, the

following hourly rate in addition to their base hourly rate:

~~Platoon Personnel ————— \$0.53 —~~

~~Day Personnel ————— \$0.75 —~~

~~Advanced Emergency Medical Technician~~

~~All Members, except for Daytime Battalion Chief's and above of the Department shall receive, when they are certified as Advanced Emergency Medical Technicians by the State of Wyoming, the following hourly rate in addition to their base hourly rate:~~

~~All Personnel ————— \$1.07~~

~~Members will only receive this pay for a maximum of three years, until which time they certify to the paramedic level. If they do not certify to the paramedic level within three years, members shall only receive EMS pay to the EMT basic level. This time frame may be extended at the discretion of the Fire Chief.~~

~~Paramedic~~

~~All Members, except for Daytime Battalion Chief's and above of the Department shall receive, when they are certified as Paramedics by the State of Wyoming, employed by the Department, and performing paramedic duties as approved and assigned by the Department, the following hourly rate in addition to their base hourly rate:~~

~~Platoon Personnel ————— \$2.66~~

~~Day Personnel ————— \$1.87 —~~

~~EMS Coordinator ————— \$3.73 —~~

	<i>Hourly Rate Added to Base Wage</i>	
<i>WY EMS Certification Level</i>	<i>Shift 56-hour</i>	<i>Shift 40-hour</i>
<i>EMT Basic</i>	<i>\$0.55</i>	<i>\$0.97</i>
<i>Advanced EMT</i>	<i>\$1.10</i>	<i>N/A</i>

<i>Paramedic</i>	<i>\$2.74</i>	<i>\$1.93</i>
<i>EMS Coordinator</i>	<i>-</i>	<i>\$3.84</i>

All Daytime members may receive ~~full-rate~~ full-rate EMS pay as the Fire Chief determines services are needed.

Shift Trainers

Three Emergency Medical Services Shift Trainers shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

\$1.3~~7~~³

Three Fire Shift Trainers shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

\$1.3~~7~~³

Special Operation Team Pay

Members of Special Operations Teams are limited in compensation to two teams. Members shall only be compensated for one position per team assignment.

Special Operations Team Coordinator:

Platoon: \$1.3~~7~~³

Day: \$1.~~93~~⁸⁷

Special Operations Team Lead:

Platoon: \$0.6~~9~~⁷

Day: \$0.9~~6~~³

Special Operations Team Member:

Platoon: \$0.4~~5~~⁴

Day: \$0.6~~4~~²

Acting Certification Pay

Platoon Members shall receive in accordance with Section 23, Working In A Higher Job Rank, that meet the certification eligibility requirements to act, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$0.4~~6~~⁵

2nd Acting Certification \$0.6~~8~~⁶

Members shall only receive one rate for acting certification.

Cadre/Training Instructor

Members appointed to the position of Cadre/Training Instructor will maintain current compensation including specialty and longevity pays. Work hours will be converted to a forty-hour pay scale.

SECTION 22. OVERTIME

Overtime rates shall be paid on the following work:

- A. Holiday overtime.
- B. Ordered duty overtime and hold over overtime.
- C. Overtime work in excess of 182 hours per twenty-four-day work period.

When computing total hours in a work period, Members shall be given hour for hour credit for the following paid leave:

- A. Bereavement leave.
- B. Leave due to injury on-duty.
- C. E.O.D.
- D. Vacations.
- E. Military

All hours worked up to and including 182 hours in a twenty-four-day work period shall be compensated at the base rate for the classification that the Member is assigned to as defined in Section 21, Classification of Employment and Basic Wages, and will be inclusive of all regularly scheduled education, specialty, and longevity pays. All other remuneration to the Member such as pay for vacation, sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section.

All hours worked in a twenty-four-day work period in excess of 182 hours will be paid an additional one and one-half times the base rate as defined in Section 21, Classification of Employment and Basic Wages, and will be inclusive of all regularly scheduled education, specialty, and longevity pays. All other remuneration to the Member such as pay for vacation,

sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section.

Overtime shall be paid at the rate of one and one-half times the individual's base rate, and will be inclusive of all regularly scheduled education, specialty, and longevity pays, or the base rate of the position they are filling, and will be inclusive of all regularly scheduled education, specialty, and longevity pays, whichever is higher. All other remuneration to the Member such as pay for vacation, sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section. All personnel shall be granted their choice of overtime pay or E.O.D. compensatory time off at the rate of one and one-half hours off for each hour worked.

If overtime work is required to cover a vacancy in any position, such work shall be offered to Department Members from a roster which includes all Members. The shift roster shall be maintained by the Union and monitored by the Fire Chief and/or their designees, and such work will be offered in as equitable a manner as possible. Any position filled pursuant to this Section shall be paid at the Member's base rate or the rate for the position they are filling, whichever is higher.

Overtime work on a holiday shall be paid at an additional two times the base rate for the hours that are on the holiday.

All Daytime positions shall be filled at the discretion of the Fire Chief.

Mandatory call out pay shall be two hours minimum. After the two hours minimum, one to thirty minutes shall be compensated for as one-half hour, and thirty-one to sixty minutes shall be compensated for as one hour.

The maximum accrual for E.O.D. compensatory time will be 480 hours. This maximum

accrual applies to any balance of E.O.D. compensatory time including, but not limited to, amount earned from committee work, special projects or overtime, sick leave bonus. Any E.O.D. compensatory time over 480 hours must be taken during the payroll year in which it was earned. No Member will be allowed to carry over a balance of E.O.D. compensatory time greater than 480 hours on January 20th. The use of E.O.D. compensatory time cannot create an overtime situation.

When Day Personnel are working in an overtime capacity on a platoon shift, their base rate, education, specialty, EMS, and longevity pays shall be converted to a 56-hour pay rate.

SECTION 23. WORKING IN A HIGHER JOB RANK

- A. In the event a Platoon Member promoted above the rank of Firefighter is absent from their normally scheduled shift, a qualified Member will assume those duties for the duration of the absence. The assigned Member shall receive all regularly scheduled base, education, specialty, and longevity pays that the Member is entitled to. Members certified to act shall be paid in accordance with Section 21, "Acting Certification Pay". Daytime Members are excluded from Acting Certification Pay. At the discretion of the Fire Chief, should a member act in a higher job rank for more than three consecutive months, that member shall be paid the Step 2 rate of said rank. If that member is not qualified to act beyond said rank, they will not qualify for acting certification pay while receiving the Step 2 rate.
- B. When filling an absence through the acting mechanism, preference may be given to retain the acting Member at the station in which they have been assigned or chosen. Additionally, a Member's ranking on the "eligibility list" may be taken into account to provide for said Member to act more frequently. Final acting placement for daily operations will be at the discretion of the corresponding shift's battalion chief.
- C. Except in cases of overtime, the Member(s) assigned to fill said position(s) shall be from the same shift. In the event there are no Members from the same shift available to act, the absence shall be covered by a qualified Member using the overtime mechanism.
- D. Certification eligibility:
- a. Members previously certified or who have completed departmental training and testing shall be grandfathered.

- b. All members must complete departmental training and testing as approved by the Fire Chief. The Fire Chief shall establish a career progression pathway for all Members. Formal acting academies for Engineer, Lieutenant, and Battalion Chief shall be available to those qualified members at a minimum of every two years.
 - c. Firefighters assigned to act in the capacity of Engineer must have completed two years of service to the Department.
 - d. Firefighters assigned to act in the capacity of Lieutenant must have completed four years of service to the Department.
 - e. Engineers assigned to act in the capacity of Lieutenant must have completed four years of service to the Department.
 - f. Lieutenants assigned to act in the capacity of Battalion Chief must have completed eight years of service to the Department.
 - g. Any Member may choose to remove themselves from the acting pool, said Member shall not receive any corresponding acting pay referenced in Section 21. If the Member chooses to reinstate their name into the acting pool, their qualifications and eligibility will be subject to review and approval of their departmental training and testing as approved by the Fire Chief. The frequency and circumstances surrounding the Member's choice to remove or reinstate themselves may be considered by the Fire Chief when reviewing and approving the Member's reinstatement.
- E. In the event a Member occupying a Day Personnel position is absent due to illness, injury, disability, or other cause and it is expected that the Member will resume the performance of the duties of the position, the Fire Chief may assign another Member to the position as an actor. If the Fire Chief chooses to assign an actor, the Fire Chief shall assign the highest-ranking Member on the eligibility list for the position, established by the Civil Service Commission in its Rules and Regulations, who is willing to serve as an actor. If the eligibility list for the position has become exhausted pursuant to Chapter I, Section 3.s., of the Civil Service Commission Rules and

Regulations, the position shall be offered to Members whose names appear on a roster established to fill the position.

- F. All Members on the acting roster for Day Personnel positions shall have four years of employment with the Department and the Fire Chief may require possession of a Class B driver's license. In the absence of an established acting roster, the Fire Chief may assign a Member to fill the position by temporary assignment. Any Member shall be placed on or removed from a roster by notifying the Fire Chief in writing.
- G. Light duty, as defined in Section 27 of this Agreement, will not be considered working in a higher job rank.
- H. A temporary assignment, if assigned will adhere to Section 2 of this agreement, with the following conditions:
 - a. If an assigned Member's work schedule is modified, Section 24 of this agreement will be followed to convert pay and benefit hours for the duration of the assignment.
 - b. A Member shall not be converted to a lower rank or classification in the event of a temporary assignment.
 - c. The Member will continue to receive all specialty, education, longevity, acting and other pays the Member is entitled to for the duration of the assignment.

SECTION 24. CONVERSION OF BENEFIT HOURS

A. Members who move from a Platoon Personnel rank or position to a Day Personnel rank or position, and Members who move from a Day Personnel rank or position to a Platoon Personnel rank or position, pursuant to promotion, transfer, temporary assignment, or Light Duty will be subject to benefit conversion. The benefit conversion will be calculated under the following formulas:

1. Platoon to Day: Divide the number of hours worked while on Days divided by hours worked on Platoon per month. Conversion factor shall be 0.712 ($173.333/243.333$) = 0.712.

Example: A Platoon Personnel Member has accrued 200 hours times 0.712 for a total of 142.4 hours (200×0.712) = 142.4.

2. Day to Platoon: Divide the number of hours worked while on Platoon divided by hours worked on Days. Conversion factor shall be 1.403 ($243.333/173.333$) = 1.403.

Example: A Day Personnel Member has accrued 100 hours times 1.403 for a total of 140.3 hours (100×1.403) = 140.3.

B. These calculations shall apply to conversions of vacation, sick hours, EOD, and sick leave bonus.

C. Members with less than thirty days in assignment shall not be covered.

SECTION 25. WELLNESS/FITNESS PROGRAM

The City agrees to provide an annual physical for all Members which will include the following (except as noted):

○ Blood pressure, pulse	○ Comprehensive metabolic panel
○ Respiratory rate and temp.	○ Liver function tests
○ Oxygen saturation	○ Hepatitis profile
○ Weight and body-fat index	○ Complete blood count
○ Thorough skin exam	○ Thyroid panel
○ Eye and hearing exams	○ Hemoglobin A1c (for diabetes monitoring)
○ Throat and thyroid exam	○ Fasting lipids and blood glucose
○ Heart and lung exam	○ Urinalysis and urine biomarkers
○ Prostate and rectal exam	○ EKG
○ Abdominal and testicular exam	○ PSA (begin at age 40 for prostate cancer screening)
○ Fecal occult blood testing	○ Mammograms for females (begin age 35)
○ Pelvic and Pap for females	○ Low-dose chest CT scanning (begin age 40 or 10 years of service and every 3 years, after that)
○ Vascular exam	○ Colonoscopy (begin age 40 and every 5 years)
○ Neurological exam	○ Pulmonary function test every 3 years
○ Musculoskeletal exam	○ Exercise stress echocardiogram test (begin age 40 and every three years)
○ Behavioral health screenings: anxiety, depression, PTSD, suicidal ideation, sleep disorders, smoking, and self-medicating behaviors with alcohol and drugs	

Any additions made by the National Fire Protection Association (NFPA) 1582 guidelines shall be included. In addition, specialty team members will receive any additional testing as required by any relevant standards and/or clinically recommended. Overtime or EOD shall not be authorized for the completion of any annual, entry-level, or exit physical examinations to include backfill.

A complete exit physical shall be offered to all members, with five (5) or more years of employment with Cheyenne Fire Rescue, within their final year of employment. This shall include all applicable items in the table above, and required by NFPA 1582 guidelines, regardless of time

intervals.

Furthermore, the City and the Union agree to adopt and promote the International Association of Fire Chief's International Association of Fire Fighters Peer Fitness and Wellness Program. This benefit does not constitute a prevailing right.

SECTION 26. VACATIONS/E.O.D.

A. Annual vacations shall be determined for the period from January 1 to December 31 of each year based on the years of service completed prior to January 1 of each year.

B. All vacation time shall be accrued.

C. All rosters shall be made up prior to January 1 of each year in which the vacations are to be taken.

D. All Platoon Personnel shall choose their vacations on their respective shift, according to their seniority on the job.

E. A separate vacation roster shall be maintained for each shift.

~~F. A maximum of five slots may be available at any time, four vacation or E.O.D. slots and one E.O.D. only slot, except for override vacations due to transfers or approvals from the Fire Chief.~~

F. Vacations shall be picked by seniority of the Shift. The Senior Member shall select complete sets until they are either unable to select more or elects to stop their pick. The next Senior Member shall then select complete sets until they are either unable to select more or elects to stop their pick. The sequence shall continue by seniority until the entire Shift has picked. The sequence shall start over by seniority and continue until all Members have exhausted their accrued days and/or non-complete sets (individual shifts) from available dates. From October 1 to December 1 of the previous calendar year, four (4) Vacation Slots per shift shall be available for selection using the process outlined herein.

Requests for changes to vacations or E.O.D. shall be made to the Battalion Chief of the Shift and shall be awarded on a first come first serve basis on December 1 at 0800.

G. After December 1, and up until 144 hours prior to the scheduled use, members may schedule or modify Vacation or E.O.D. (maximum of four (4) slots per shift). Additional EOD requests may not cause overtime, provided staffing does not fall below 2 above the minimum.

H. E.O.D. must be taken in increments of no less than four (4) hours.

I. Vacation and E.O.D. may be cancelled or changed by members up to 144 hours prior to 0800 hours of the assigned set.

J. Any Vacation Slots or E.O.D. (maximum of four (4) per shift) that are still available may be filled between 144 hours and 98 hours prior to the scheduled use, provided staffing does not fall below 2 above minimum, preventing EOD use from causing overtime.

K. The on-duty Battalion Chief, Deputy Chief, or Fire Chief may grant use of vacation time or use of E.O.D. after the 98-hour window in case emergency leave is needed. E.O.D. use for Emergency leave may not cause an overtime situation.

L. Members affected by military deployment or extended illness or injury may work with the on-duty Battalion Chief, Deputy Chief, or Fire Chief to schedule unused vacation where available upon return to duty so long as it is within the calendar year.

M. Accrual awards for the final month of employment shall be administered in the

same manner and under the same conditions as those applied to all other employees of the City of Cheyenne.

~~G. — Vacations shall be picked by seniority of the Shift. The Senior Member shall select complete sets until they are either unable to select more or elects to stop their pick. The next Senior Member shall then select complete sets until they are either unable to select more or elects to stop their pick. The sequence shall continue by seniority until the entire Shift has picked. The sequence shall start over by seniority and continue until all Members have exhausted their accrued days and/or non-complete sets (individual shifts) from available dates. Requests for changes to vacations or E.O.D. shall be made to the Battalion Chief of the Shift and shall be awarded on a first come first serve basis on December 1 at 0800.~~

~~— H. — If, after sick call, there are additional openings that do not affect minimum staffing, Members may request “Day of Vacation or E.O.D.” as long as the additional slots do not create overtime. Openings shall be awarded on a first come first serve basis.~~

~~— NI. —~~ Day Personnel shall be carried on a separate vacation roster from the Platoon Personnel, and they may split vacations.

OI. During the term of this Agreement, a Member’s vacation or balance thereof shall be rescheduled into available vacation slots due to promotion and demotion. If a Member is involuntarily moved, that Member retains their slot at their new assignment. In the event a Member is involuntarily moved, and a slot is vacated by any personnel in the four-member group, that slot shall be considered vacated and the maximum of four Members off will take effect. In the event there are no vacation slots available, only then will a Member be allowed to carry their vacation

beyond the maximum four persons off at any one time.

PK. All Platoon Personnel shall be entitled to a vacation with full pay and all benefits as follows:

After successful completion of the fire academy, a pro-rated amount of 24-hour shifts at .8333 shifts per each full month of continuous service to be taken in the following year;

After one year of completed service, ten 24-hour regularly assigned tours of duty;

After five years of completed service, eleven 24-hour regularly assigned tours of duty;

After ten years of completed service, twelve 24-hour regularly assigned tours of duty;

After fifteen years of completed service, thirteen 24-hour regularly assigned tours of duty;

After twenty years of completed service, fourteen 24-hour regularly assigned tours of duty;

After twenty-five years of completed service, fifteen 24-hour regularly assigned tours of duty;

After thirty years of completed service, sixteen 24-hour regularly assigned tours of duty.

~~All platoon vacation accrued shall be scheduled and used each calendar year, with no carryover of days allowed, unless a member is unable due to injury or illness.~~

Q. All members vacation accrued shall be scheduled and used each calendar year.

Members may only utilize vacation hours equal to their current year's allocation based on years of service. Members shall make good-faith efforts to use their full annual vacation allotment. Members may not cancel an approved vacation for the purpose of banking hours for future payout.

Vacation hours that remain unused at year-end will be banked for separation or promotion payout only under documented circumstances beyond the member's control, including:

1. Injury or prolonged illness
2. Denied vacation requests due to operational staffing requirements, mandated duty assignments
3. Other circumstances that prevented the member from using the scheduled vacation through no fault of their own.

Any member with unused vacation hours at year-end must submit written documentation to their Battalion Chief by January 5 explaining the circumstances that prevented use of those hours. The Battalion Chief shall review the submission and forward it with their recommendation to the Deputy Chief of Emergency Services by January 10.

The Deputy Chief of Emergency Services shall make the final determination by January 15 whether the hours qualify for banking or should be forfeited. In the absence of the Deputy Chief of Emergency Services, the Fire Chief or designee shall make the determination. Any vacation canceled without documented justification and Chief Officer approval may be forfeited rather than banked.

RL. All Day Personnel shall be entitled to a vacation with full pay and all benefits as

follows:

After one year of completed service, 120 hours;

After five years of completed service, 140 hours;

After ten years of completed service, 170 hours;

After fifteen years of completed service, 190 hours;

After twenty years of completed service, 220 hours;

After twenty-five years of completed service, 240 hours;

After thirty years of completed service, 260 hours.

S. Day Personnel assigned after July 1, 2023, shall not carry over more than 240 hours of vacation from one calendar year to the next. This excludes rotational positions as defined in this contract agreement.

SECTION 27. SICK LEAVE

All Members of the Department shall earn accumulative sick leave at the rate of one shift for each full month completed until a maximum of 1,440 hours for platoon and 1,025 hours for day personnel have been accrued. All sick leave not in excess of the maximum, which has been accrued by Members of the Department at the date of this Agreement, shall be considered to be vested and shall continue in effect. At the time of separation from the Department, Members with at least four years of continuous service shall be paid fifty percent of their accrued sick leave up to a maximum of 240 hours at their regular base rate computed on 2,080 annual hours not to exceed thirty 8-hour shifts. Sick leave is hereby defined to mean absence from post of duty of a Member because of personal illness or injury of the Member. Sick leave may be used for attendance upon an immediate family member due to illness, injury, or accident. Additionally, Day personnel may use sick leave for routine visits to a physician, dentist, or other provider of medical services for the employee, the employee's spouse, the employee's minor child (under eighteen (18) years of age), or the employee's child over eighteen (18) years of age with a disability.

Accrual awards for the final month of employment shall be administered in the same manner and under the same conditions as those applied to all other employees of the City of Cheyenne.

Sick leave shall not be considered as a privilege which a Member may use at their discretion but shall be allowed only in case of necessity and actual sickness or disability of the Member or immediate family member.

- A. Beginning January 1, 2014, all Members who take ninety-six hours or less of sick

leave for a calendar year shall be paid a cash bonus or E.O.D. compensatory time as set forth herein.

B. All Members shall be eligible for up to ninety-six hours of pay or E.O.D. compensatory time when they use less than ninety-six hours of sick leave in a calendar year. For every hour of sick leave used, the pay or E.O.D. compensatory time shall be reduced by one hour from the possible ninety-six hours. Members shall only be able to take up to forty-eight hours of pay. All hours earned over forty-eight shall be taken as E.O.D. compensatory time.

~~C. If the Member takes any of the first forty-eight hours as E.O.D. compensatory time, up to forty-eight of those hours can be banked for future use. All of the hours earned above forty-eight shall be used on or before December 31 of the year in which they were awarded or they will be lost.~~

~~C~~D. This benefit will be prorated for new Members who have been employed for more than six months but less than one year.

~~D~~E. After three consecutive working shifts off-duty from illness or injury, a doctor's certificate of examination shall be required if requested by the Fire Chief covering the period of sickness or disability. In addition to the above, a Member may be required to provide a doctor's certificate of examination in the event sick leave is taken for the shift immediately preceding or following a vacation period. Any examination as ordered shall be paid for by the City. Upon presentation of satisfactory information, the Fire Chief may extend the sick leave or waive the doctor's excuse requirement. If an extension is refused, an appeal may be made to the Mayor.

~~E~~F. Members may, at any time during the calendar year, donate up to one hundred twenty hours of their unused sick leave into the Department Sick Leave Bank or the City Sick

Leave Bank. A maximum amount of six hundred 24-hour shifts will be accumulated in the Department Sick Leave Bank. Members will be allowed to use sick leave from the Department Sick Leave Bank only when all personal sick leave benefits have been used. Written application for the use of the Department Sick Leave Bank must be made to a Sick Leave Bank committee consisting of the Union president or their designee, the Fire Chief, and the Mayor or their designee, within ten business days prior to the date the sick leave is needed. The committee may, at its discretion, request a doctor's certificate of examination before granting use of the Department Sick Leave Bank. Denial of a sick leave request is not subject to appeal or grievance. Members will continue to accrue benefits during the usage of sick leave from the Department Sick Leave Bank.

FG. Upon separation of employment with the City, Members may donate the balance of uncompensated hours to the City Sick Leave Bank.

GH. Members who are recuperating from an injury or illness may return to duty to perform work (light duty) consistent with their abilities as determined by the Member's physician. The Member shall, upon request, furnish the City with a physician's statement specifying the type of work the Member may perform. The statement shall specify medically necessary restrictions, if any. The Fire Chief shall place the Member in a position which contributes in a meaningful and identifiable way to the goals and needs of the Department.

HI. Any Member who is injured in the discharge of their duties shall file such reports of accident disability or injury, as shall be required to secure the payment of benefits under the Wyoming Worker's Compensation Act to the injured Member. While injured, said Member shall use their accrued sick leave and once exhausted may use the Department Sick Leave Bank until return to duty or pension disability is received. If the Member receives temporary total disability

payments under the Worker's Compensation Act, the Member shall transfer those monies to the City.

JK. Claims for medical or hospital charges, drugs, and other compensable medical services shall be filed with the Worker's Compensation Division. If a Member becomes ill or disabled prior to their regularly scheduled vacation, the Member and Fire Chief, by mutual agreement, shall re-schedule the vacation for said Member into available vacation slots, if possible.

JK. Sick leave will be charged by the hour, one hour for every hour off. In the event that a Member returns to work after being on disability pension, said Member shall return to the rank and position they held previous to the disability without loss of seniority if return to work is within eighteen months.

SECTION 28. BEREAVEMENT LEAVE

In the case of death within the immediate family of any Member of the Department, such Member shall be granted leave with pay.

A Member who is assigned to a Platoon Personnel position may have three shifts of leave and a Member assigned to a Day Personnel may have four shifts of leave. Under extenuating circumstances, additional leave may be granted by the Fire Chief.

The Fire Chief may, in the exercise of discretion, grant bereavement leave upon the death of a person other than the Member's immediate family.

SECTION 29. LEAVE OF ABSENCE

Any Member of the Department may be granted a Leave of Absence without pay for a period not to exceed three months. The request for such leave shall be made in writing to the Fire Chief not less than ten days before such leave would begin and is subject to the Fire Chief and the Mayor's approval. The Fire Chief may also place a Member on a leave of absence with pay.

No Member shall be granted a leave of absence to work in another job full time or be newly employed and receive benefits from another employer.

SECTION 30. MEDICAL, DENTAL, AND LIFE INSURANCE

Except as provided in this Section, the City shall pay the premium cost for Health, Dental, and Life Insurance under “The City Employees’ Insurance Contract,” for those Members desiring to obtain such coverage. If the City offers more than one health insurance plan to City employees, Members shall be offered the plan providing more extensive benefits. Each participant in the City health insurance program shall contribute at the same rate as other City employees. Dental insurance coverage shall be provided for the Member. Dental insurance coverage for the Member’s family is available at the Member’s expense.

A. Members shall be entitled to insure their dependents under the plans offered by the City. An eligible dependent is defined as a spouse and children up to the age of 26, whether married or unmarried. Dependent children aged 26 or older may be eligible to remain insured if a physician certifies that the child cannot support themselves because of a disability which occurred before they reached the age of 26.

B. Any Member with dependent coverage may add new dependent children at any time. However, the application for coverage must be made within thirty days of the birth, placement, or adoption of the child.

C. The Union shall have the right to appoint one Member to the City Employee’s Health Insurance Committee.

The City shall offer to all Members the option of participating in a flexible health benefits plan which qualifies as a “cafeteria plan” within the meaning of Section 125 of the Internal Revenue Service Code.

Whenever any Member's yearly base salary entitles said Member to a higher amount of Life Insurance, such Life Insurance increase shall be effective July 1 of each year with a maximum of \$20,000.00.

The City shall offer Members fifty years of age or older who elect to retire the option of maintaining the current health insurance policy at the single rate. The City shall pay a maximum of \$300.00 per month toward the single coverage. The policy shall remain in effect until the Member attains the age of eligibility for Medicare or becomes eligible for coverage through another employer. Members hired after July 1, 2013, shall not be eligible for this provision.

If a Member becomes permanently disabled, as defined by the State of Wyoming Worker's Compensation Division, in the line of duty, or dies due to injury or illness incurred in the line of duty, said Member and/or their eligible dependents shall be offered health insurance at the expense of the City. The City shall pay for health insurance for the disabled Member. Said coverage will remain in effect until the Member and their eligible dependents become eligible for coverage through another employer or become eligible for Medicare. Coverage shall be equal to or exceed the health insurance available to other Members. Subject to the conditions in this Section, this coverage shall be offered the remainder of said Member's life, and to the dependents of said Member as long as they meet the qualifications of a dependent.

Eligible dependents are defined as:

- A. The spouse, as long as he or she does not remarry.
- B. Children up to the age of 26, whether married or unmarried.
- C. Dependent children age 26 or older may be eligible to remain insured if a physician certifies that the child cannot support themselves because of a disability which occurred before

they reached the age of 26.

The City of Cheyenne may from time to time require verification of permanent disability of Member, of employment, or of a dependent's age or disability.

Section 30A. IAFF Medical Expense Reimbursement Plan (MERP)

1. PURPOSE

The City and the Union agree to participate in the IAFF Medical Expense Reimbursement Plan (MERP) to provide Members and their qualified dependents with tax-free reimbursement of medical expenses and health-insurance premiums as authorized under Internal Revenue Code §501(c)(9) and §105(b).

2. MEMBER CONTRIBUTION AMOUNT

The City and the Union agree that the City shall withhold a mandatory contribution of \$50.00 per month on a pre-tax basis from the pay of every Member who is represented by the Union and shall transmit such contributions to the IAFF MERP pursuant to the requirements in Section 5 below. If a member has been placed in leave without pay status, they will be required to pay 100% of the total contribution. No Member shall be permitted to opt-out of the mandatory contributions or receive any portion of the contribution in cash.

3. SICK LEAVE TRANSFER.

The City and the Union agree that the City will make the following mandatory transfers, on a pre-tax basis, on behalf of every Member. The City will make the following mandatory transfers of compensated sick leave, as listed in Section 27 of this Agreement, to the IAFF MERP unless the member provides written notice at least 30 days prior to separation date of the selection to the members deferred compensation account. If the Member selects to transfer the following compensated sick leave to the deferred compensation account, but all or a portion of the transfer exceeds the maximum allowable transfer to the deferred compensation plan, then the City will transfer that portion that exceeds the maximum deferred compensation contribution to the IAFF MERP.

- a. **Mandatory Accrued Leave Contribution to IAFF MERP at Retirement.** For every Member of the Bargaining Unit, who selects IAFF MERP or makes no plan selection, the City shall, upon the employee's separation from the City and on behalf of the employee, irrevocably contribute to the Trust on a pre-tax basis, an amount equal in value to 100% of the payments that would otherwise be paid to the employee for unused sick leave under this Agreement.

b. **No Individual Member Election.** The Member shall not have the option to receive a cash payout for the value of the accrued leave designated for contribution to a plan pursuant to this Section. In addition, the Member shall not have the option to contribute a smaller percentage of accrued leave than the percentage indicated in Section 3(a) above.

4. **CITY CONTRIBUTION AMOUNT**

The City shall make a mandatory contribution of \$50.00 per month on a pre-tax basis for every Member. No Member shall be permitted to opt-out of the mandatory contributions or receive any portion of the contribution in cash. The City shall not make a contribution for members in a leave without pay status.

5. **REMITTANCE OF CONTRIBUTIONS**

The City shall remit all IAFF MERP contributions directly to the custodian of the Trust within 30 days of the date the payment would have been payable to the Member. The City will comply with rules set by the Trust in regard to reporting and depositing the required contributions set forth herein.

6. **MODIFICATION OF MEMBER CONTRIBUTION AND LEAVE AMOUNTS** The City and the Union agree that the Union has the right, subject to approval of its Members according to the Local's internal Constitution and By-laws, to prospectively modify the amount of the mandatory Member monthly contribution (Section 2), during the course of this Agreement, as long as the modification is mandatory for all Members.

SECTION 31. UNIFORMS

A. Uniform items and their compliance will be agreed upon between the Fire Chief and the Union so as to provide the best options for the Members, while being fiscally responsible and assuring for the safety of the Members.

B. The City agrees to fund uniform purchases for all Members in an amount of Five Hundred Fifty Dollars (\$550.00) per Member per year. The offered uniform items will include, but not be limited to, American National Standard Institute (ANSI) compliant work boots, station pants, long and short sleeve dress shirts, polo shirt, a tie, Job Shirt sweatshirts, sweatpants, workout shorts, coat/jacket, cotton T-shirts (blue, red and white), belts, ball cap, winter cap and formal Class A dress uniform and alterations

C. A set selection of items for new recruits will be agreed upon between the Fire Chief and the Union, or its designee. Members are responsible for the reasonable care of their uniforms.

D. The Department shall purchase each member a Class A dress uniform upon completion of their fifth year of service.

SECTION 32. PERSONAL PROTECTIVE EQUIPMENT

The City will furnish and maintain for each Member serviceable structural firefighting turnout gear and equipment consisting of one pair of boots, one pair of trousers that includes liners and suspenders, one coat that includes liner, one helmet that includes liner, one pair of gloves and a flash hood, and one pair of extrication gloves, as needed. The City will provide coat lights on the truck.

The aforementioned turnout gear shall be NFPA ~~1971~~1970 compliant. A second set of turnout gear consisting of trouser and coat, a second pair of structural firefighting gloves, and a second protective hood shall be provided by the City to all platoon members in order to reduce a Member's exposure to carcinogens after a fire. Should the Department absorb new operations, the Department and the Union will agree upon proper equipment to be issued to each Member. Members are responsible for the reasonable care of their equipment.

SECTION 33. UNION DUES

Upon written authorization by a Member of the Department, the City agrees, at no cost to the Union or Member, to deduct the sum certified as Union Dues, and the sum certified as PAC fund contribution, if any; and deliver the amount collected from each to the Union treasurer in their respective amounts. If a Member does not have a check coming, or the check is not large enough to satisfy the sum certified, no collection shall be made from said Member for that month.

SECTION 34. MILEAGE ALLOWANCE

If a Member has arrived at their assigned station, and is reassigned to duty at another station, said Member shall receive a mileage allowance consistent with City policy for that transfer and any other transfers during that shift. The mileage between stations shall be determined by the Fire Chief.

SECTION 35. RESIDENCY

Members will be required to be a resident and be domiciled within a sixty-mile radius of the Cheyenne Fire Rescue Headquarters Station 1, located at 716 West 19th Street, Cheyenne, Wyoming. As used herein, a resident is defined as a person who is domiciled and physically resides within the above-described area with the present intent to remain there during the terms established above. Intent may be established by the Member's physical presence, which is ongoing, not temporary. A postal box alone is not sufficient to establish residency. Violation of this Section may be grounds for termination. Residency requirements must be met within three months of the Member's date of hire or six months within the discretion of the Fire Chief.

SECTION 36. TIME OFF FOR UNION BUSINESS

A maximum of four Members representing the bargaining agent shall be excused with pay to attend grievance hearings pursuant to Section 8, and/or the contract negotiations and labor management meetings, provided they are attended during their regular working hours.

SECTION 37. UNION USE OF CITY FACILITIES

The fire station meeting facilities shall be available for Union meetings. Attendance at such meetings by Members of the Union shall be only during off-duty hours, except for those Members who are on-duty at the station where such meeting is held may attend after 5:00 p.m. Under no circumstance shall the readiness of the Department be compromised during any meeting.

SECTION 38. ALCOHOL AND CONTROLLED SUBSTANCE POLICY

The City and the Union shall abide by the current City of Cheyenne Alcohol and Substance Policy.

SECTION 39. FAMILY AND MEDICAL LEAVE POLICY

The City and the Union shall abide by the provisions of the Family and Medical Leave Act.

SECTION 40. PREVAILING RIGHTS

Existing working conditions not specifically covered by this Agreement, but established through past practice, shall continue in full force and effect and shall not be altered during the life of this Agreement except through the mutual concurrence of the parties, except the City may properly and equitably exercise its right to make reasonable and prudent changes in operations designed to protect the City from liability or improve the service provided by the Department.

SECTION 41. SAFETY AND HEALTH

The City and the Union shall cooperate fully on all matters concerning the safety and health of Members of the Department, and the safety, proper maintenance, and repairs of Department equipment and buildings.

To ensure that these matters are taken care of in a timely manner, the Fire Chief and the Union shall meet within ten days after receiving written notification of the safety and health matter. The Fire Chief will notify and update the Mayor of the matter. If a resolution has not been agreed upon within ten days, the Union shall meet with the Mayor and the Fire Chief.

SECTION 42. LONGEVITY PAY

Longevity raises shall be effective the first day of the month following the Member's anniversary date of employment

~~Each Member who has completed five years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:~~

~~Platoon Personnel ————— \$0.28~~

~~Day Personnel ————— \$0.39~~

~~————— Each Member who has completed eight years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:~~

~~Platoon Personnel ————— \$0.40~~

~~Day Personnel ————— \$0.56~~

~~————— Each Member who has completed eleven years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:~~

~~Platoon Personnel ————— \$0.51~~

~~Day Personnel ————— \$0.72~~

~~————— Each Member who has completed fourteen years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:~~

~~Platoon Personnel ————— \$0.63~~

~~Day Personnel ————— \$0.88~~

Each Member who has completed seventeen years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$0.754

Day Personnel \$1.054

Each Member who has completed twenty years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$0.86

Day Personnel \$1.21

Each Member who has completed twenty five years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$1.10

Day Personnel \$1.54

Longevity Pay Scale	Hourly Additional Wage	
Years	Shift 56-hour	Shift 40-hour
5 Years	\$0.29	\$0.40
8 Years	\$0.41	\$0.58
11 Years	\$0.53	\$0.74
14 Years	\$0.65	\$0.91
17 Years	\$0.77	\$1.08
20 Years	\$0.89	\$1.25
25 Years	\$1.13	\$1.59

~~Longevity raises shall be effective the first day of the month following the Member's anniversary date of employment except for those Members who began their employment on the first day of the month.~~

SECTION 43. LABOR/MANAGEMENT RELATIONS

There shall be a labor/management committee consisting of up to six Union representatives and six City representatives. The committee shall meet at least quarterly to discuss all matters of mutual concern. Either party may request additional meetings in the quarter as needed. The committee shall have the authority to make recommendations to the Union and the City. Any recommendation by the committee may be rejected by the Union or the City during negotiations.

The Fire Chief and Union shall meet regularly to discuss departmental matters and continue to improve working relationships.

The 202~~65~~-202~~76~~ Collective Labor Agreement between the City of Cheyenne, Wyoming, and the Cheyenne Firefighters Local Union No. 279, International Association of Firefighters, is signed this _____ day of _____, 202~~65~~.

CITY OF CHEYENNE, WYOMING

Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

CHEYENNE FIREFIGHTERS,
LOCAL UNION NO. 279, INTERNATIONAL
ASSOCIATION OF FIREFIGHTERS

~~Vincent McQueeney~~ Chris Thoms, President